



**JABATAN PEMBANGUNAN KEMAHIRAN
KEMENTERIAN SUMBER MANUSIA
ARAS 7 & 8 BLOK D4, KOMPLEKS D
PUSAT PENTADBIRAN KERAJAAN PERSEKUTUAN
62530 PUTRAJAYA**

KERTAS PENERANGAN (INFORMATION SHEET)

KOD DAN NAMA PROGRAM / <i>PROGRAM CODE AND NAME</i>	Z-009-3:2015 CORE ABILITIES	
TAHAP / LEVEL	3	
NO. DAN TAJUK KEBOLEHAN TERAS <i>CORE ABILITY NO. AND TITLE</i>	CA02 INFORMATION TECHNOLOGY AWARENESS	
NO. DAN PENYATAAN KEBOLEHAN <i>ABILITY NO. AND STATEMENT</i>	02.01 AWARE OF INFORMATION TECHNOLOGY UPDATE 02.02 AWARE OF INFORMATION TECHNOLOGY REGULATORY	
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TAJUK/TITLE : IT REGULATORY AWARENESS

TUJUAN/PURPOSE :

This Information Sheet is intended to describe on IT Regulatory Awareness within the organization and its related regulations affecting the usage. The person who is competent in this CA shall be able to be aware of any regulatory acts related to it

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PENERANGAN/INFORMATION :

1. History of Communication and Multimedia Act in Malaysia

1.1 With the birth and explosion of a new convergent communications and multimedia industry in Malaysia in the mid 1990s, a new paradigm requiring new approaches in media policies and regulation became a necessity. In line with this, Malaysia adopted a convergence regulation model with regards to the communications and multimedia industry in November 1998.

1.2 Two legislations were enacted to give effect to the new regulatory model: the Communications and Multimedia Act 1998 which set out a new regulatory licensing framework for the industry and the Malaysian Communications and Multimedia Commission Act (1998) which created a new regulatory body, the Malaysian Communications and Multimedia Commission.

1.3 The Communications and Multimedia Act (1998) came into enacted on 1 April 1999, while with it; the Telecommunications Act (1950) and the Broadcasting Act (1988) were repealed.

1.4 With it's creation, the Commission set forth **10 national policy objectives** to:

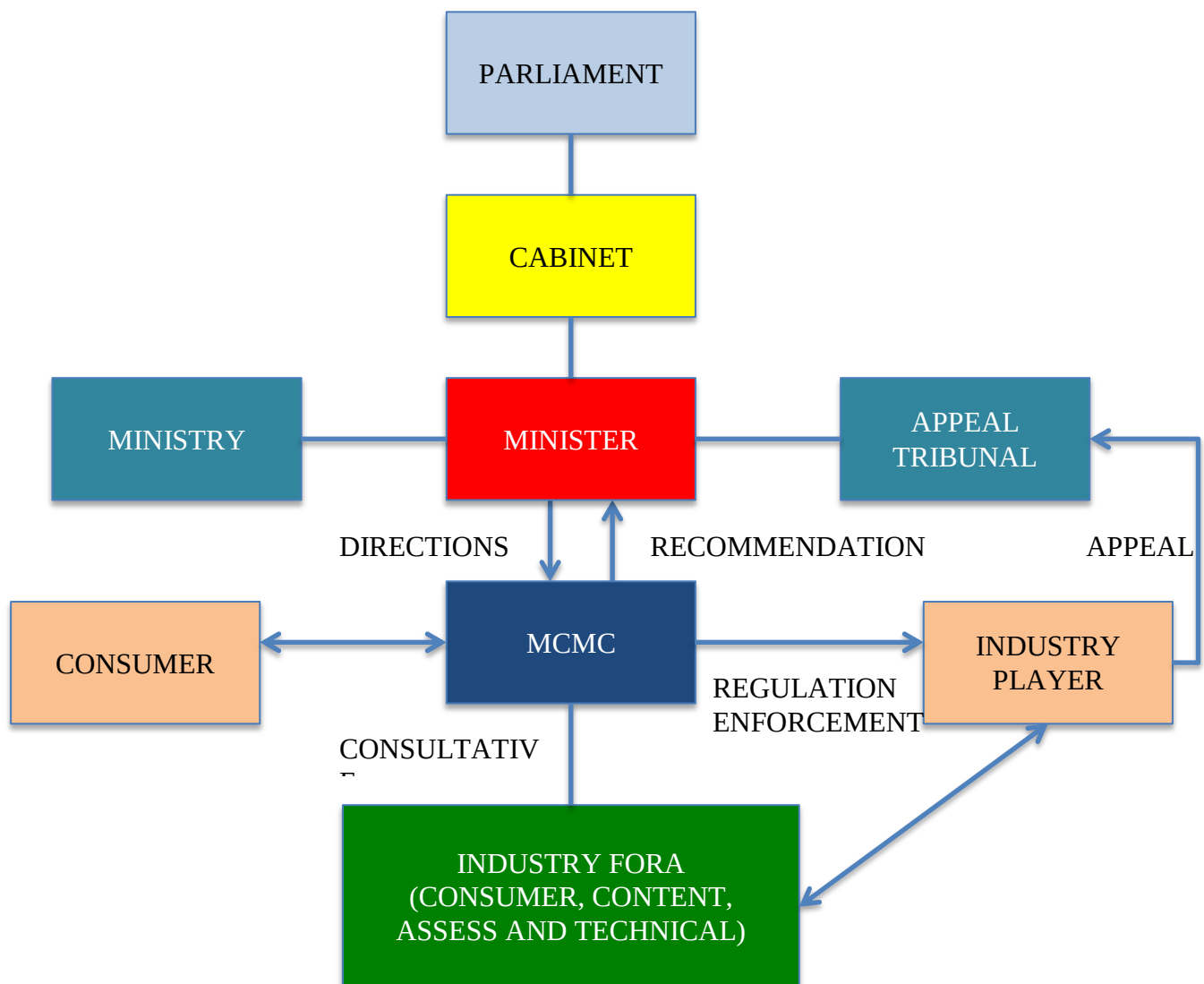
- i) Establish Malaysia as a **major global centre and hub** for communications and multimedia information and content services;
- ii) **Promote a civil society** where information-based services will provide the basis of continuing enhancements to quality of work and life;
- iii) **Grow and nurture local information resources and cultural** representation that facilitate the national identity and global diversity;
- iv) Regulate for the **long-term benefit of the end user**;
- v) **Promote a high level of consumer confidence** in service delivery from the industry;
- vi) Ensure an **equitable provision of affordable services** over ubiquitous national infrastructure;
- vii) Create a **robust applications environment for end users**;
- viii) **Facilitate the efficient allocation of resources** such as skilled labour, capital, knowledge and national assets;
- ix) **Promote the development of capabilities and skills** within Malaysia's

convergence industries; and

x) Ensure **information security and network reliability and integrity**

1.5 The 10 national policy objectives are the regulatory basis of SKMM's regulatory framework that includes economic regulation, technical regulation, consumer protection and social regulation. On 1 November 2001, MCMC also took over the regulatory functions of the Postal Services Act 1991 and the Digital Signature Act 1997.

2. INSTITUTIONAL FRAMEWORK UNDER THE COMMUNICATION AND MULTIMEDIA ACTS (CMA) 1998



Flowchart 2. Flowchart Of Process Flow Of Institutional Framework Under The Communication And Multimedia Acts (CMA) 1998

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2.1 There are 5 legislation that comes under Malaysian Communications and Multimedia Commission :

- i) Malaysian Communications And Multimedia Commission Act 1998 [Act 589]
An Act to provide for the **establishment of the Malaysian Communications and Multimedia Commission with powers to supervise and regulate** the communications and multimedia activities in Malaysia, and to enforce the communications and multimedia laws of Malaysia, and for related matters.
- ii) Postal Services Act 2012 [Act 741]
An Act to provide for the **licensing of postal services and the regulation of the postal services industry**, and for incidental or connected matters.
- iii) Communications and Multimedia Act 1998 [Act 588]
An Act to provide for and to **regulate the converging communications and multimedia industries**, and for incidental matters.
- iv) Digital Signature Act 1997 [Act 562]
An Act to make provision for, and to **regulate the use of, digital signatures** and to provide for matters connected therewith.
- v) Strategic Trade Act 2010 (STA) [Act 708]
An Act to provide for **control** over the export, transshipment, transit and brokering of strategic items, including arms and related material, and other activities that will or may facilitate the design, development and production of weapons of mass destruction and their delivery systems and to provide for other matters connected therewith, consistent with Malaysia's national security and international obligations

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3. How does these regulation affects the way we use Information Technology?

3.1 In order to make Information Technology used according to rules and regulation set by the governing bodies and to promote IT usage, a few initiatives were introduced such as :

i) *Click Wisely* (Klik Dengan Bijak).

The rapid development of communications and multimedia technology, as well as the positive growth of broadband penetration throughout the country may have an untoward affect on the Malaysian values and culture if immediate steps are not taken to nurture positive internet use based on the country's Rukun Negara (National Principles). The worrisome rise in cybercrime would be best mitigated and reduced through enforcement activities and educational-based approach for the masses. Among the proactive actions taken by MCMC is initiating a Public Awareness on Internet Safety Campaign called **Klik dengan Bijak** ("*Click Wisely*") which stresses on safety, security and responsibility of internet users.

ii) *1Malaysia Netbooks*.

MCMC through the Universal Service Provision (USP) programme has allocated one million 1Malaysia netbooks to be distributed to eligible recipients such as secondary school and university students from lower-income groups to ensure that they have the opportunity to access the internet and also to increase broadband usage throughout the country. This will contribute to the nation's broadband penetration rate as well as extend the benefits of broadband to students and the nation.

iii) *Wireless Village (Kampung Tanpa Wayar)*.

Wireless Village initiative was inspired by YB Minister of Information, Communications and Culture, as part of ongoing initiatives by MCMC towards realising the USP objectives as outlined under the Communications and Multimedia Act 1998, USP Regulations 2002 (the Regulations) i.e. provisioning of collective and individual access to Internet access service in underserved areas.

iv) *U-Library (U-Pustaka)*.

The role of u-Pustaka in the context of development, national unity and global competitiveness is crucial. It is an innovative information and knowledge

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delivery service which also promotes lifelong learning experiences at anytime and anywhere to enhance the quality of work and quality of life on an ongoing basis.

v) *Youth Communication Package* (Pakej Komunikasi Belia).

Youths aged 21 to 30 able to apply for the RM200 rebate off selected 3G smartphones from celco nominated registered dealers. The Youth Communication Package (YCP) (or Pakej Komunikasi Belia (PKB)) scheme is on a first-come-first served basis and will be for the first 1.5 million eligible youths who may claim their smartphones while stocks last.

vi) *1Malaysia Internet Centre* (Pusat Internet 1Malaysia).

1Malaysia Internet Centre is an ongoing initiative to help increase the socio economic state of underserved groups within the community by providing network services and applications services in underserved areas.

vii) *Get Malaysian Business Online*.

Announced in Budget 2013, the Get Malaysian Business Online grant is offered on a first-come-first-served basis for up to 50,000 businesses, and ends when the limit is reached or on 31 December 2013. The grant is meant for companies earning not more than RM200,000 a year with less than 10 employees, to help increase earnings of local businesses.

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SOALAN/QUESTION:

1. What are the two legislations enacted to give effect to the new regulatory model?

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2. How many policies were established by the commission?

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3. How many legislation comes under Malaysian Communication and Multimedia Commission?

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